IN THE MATTER OF an application submitted by the Department of Housing Preservation and Development pursuant to Sections 197-c and 201 of the New York City Charter for the amendment of the Zoning Map, Section No. 6a:

> Changing from a C4-4 District to a C6-3 District property bounded by the southerly boundary line of a playground and its easterly and westerly prolongations, Grand Concourse, East 144th Street, and Walton Avenue

Borough of the Bronx, Community District 1, as shown on a diagram (for illustrative purposes only) dated August 7, 2017.

This application (C 180031 ZMX) for a zoning map amendment was filed by the Department of Housing Preservation and Development on July 27, 2017, in conjunction with several related actions. This application and the related actions would facilitate the construction of a mixed-use building with affordable residential units, ground floor retail space, and community facility space in the Mott Haven neighborhood of Bronx Community District 1.

RELATED ACTIONS

In addition to the zoning map amendment (C 180031 ZMX) that is the subject of this report, implementation of the proposed development also requires action by the City Planning Commission on the following applications, which are being considered concurrently with this application:

C 180032 HAX	UDAAP designation, project approval and disposition of City-owned property
N 180033 ZRX	Zoning text amendment to modify bulk regulations in certain C6-3 zoning districts and to designate a Mandatory Inclusionary Housing (MIH) area

BACKGROUND

A full background discussion and description of this application appears in the report for the related UDAAP action (C 180032 HAX).

ENVIRONMENTAL REVIEW

This application (C 180031 ZMX), in conjunction with the applications for the related actions (C 180032 HAX and N 180033 ZRX), was reviewed pursuant to the New York State Environmental Quality Review Act (SEQRA), and the SEQRA regulations set forth in Volume 6 of the New York Code of Rules and Regulations, Section 617.00 et seq. and the City Environmental Quality Review (CEQR) Rules of Procedure of 1991 and Executive Order No. 91 of 1977. The lead agency is the Department of Housing Preservation and Development. The designated CEQR number is 17HPD068X.

A summary of the environmental review appears in the report for the related UDAAP action (C 180032 HAX).

UNIFORM LAND USE REVIEW

This application (C 180031 ZMX) and the application for the related UDAAP action (C 180032 HAX) were certified as complete by the Department of City Planning on August 7, 2017 and duly referred to Bronx Community Board 1 and the Bronx Borough President in accordance with Title 62 of the rules of the City of New York, Section 2-02(b), along with the related application for a zoning text amendment (N 180033 ZRX), which was referred for information and review in accordance with the procedures for non-ULURP actions.

Community Board Public Hearing

Bronx Community Board 1 adopted a resolution recommending approval of the application (C 180031 ZMX) with conditions on September 28, 2017 by a vote of 15 in favor, nine opposed, and with zero abstentions.

A summary of the vote and recommendations of Community Board 1 appears in the report for the related UDAAP action (C 180032 HAX).

Borough President Recommendation

This application (C 180031 ZMX) was considered by the Bronx Borough President, who issued a recommendation approving the application on October 30, 2017. A summary of the Borough President's recommendation appears in the report of the UDAAP action (C 180032 HAX).

City Planning Commission Public Hearing

On October 18, 2017 (Calendar No. 1), the CPC scheduled November 1, 2017 for a public hearing on this application (C 180031 ZMX). The hearing was duly held on November 1, 2017 (Calendar No.11). Five speakers testified in favor of the application, as described in the report for the related UDAAP designation action (C 180032 HAX).

CONSIDERATION

The Commission believes that this application for a zoning map amendment (C 180031 ZMX), in conjunction with the applications for the related actions (C 180032 HAX and N 180033 ZRX), is appropriate.

A full consideration and analysis of issues, and the reasons for approving this application, appear in the report for the related UDAAP action (C 180032 HAX).

RESOLUTION

RESOLVED, that the City Planning Commission finds that the action described herein will have no significant impact on the environment; and be it further

RESOLVED, by the City Planning Commission, pursuant to Sections 197-c and 200 of the New York City Charter that based on the environmental determination and consideration described in this report, the Zoning Resolution of the City of New York, effective as of December 15, 1961, and as subsequently amended, is further amended by changing the Zoning Map, Section No. 6a:

> Changing from a C4-4 District to a C6-3 District property bounded by the southerly boundary line of a playground and its easterly and westerly prolongations, Grand Concourse, East 144th Street, and Walton Avenue

as shown on a diagram (for illustrative purposes only) dated August 7, 2017.

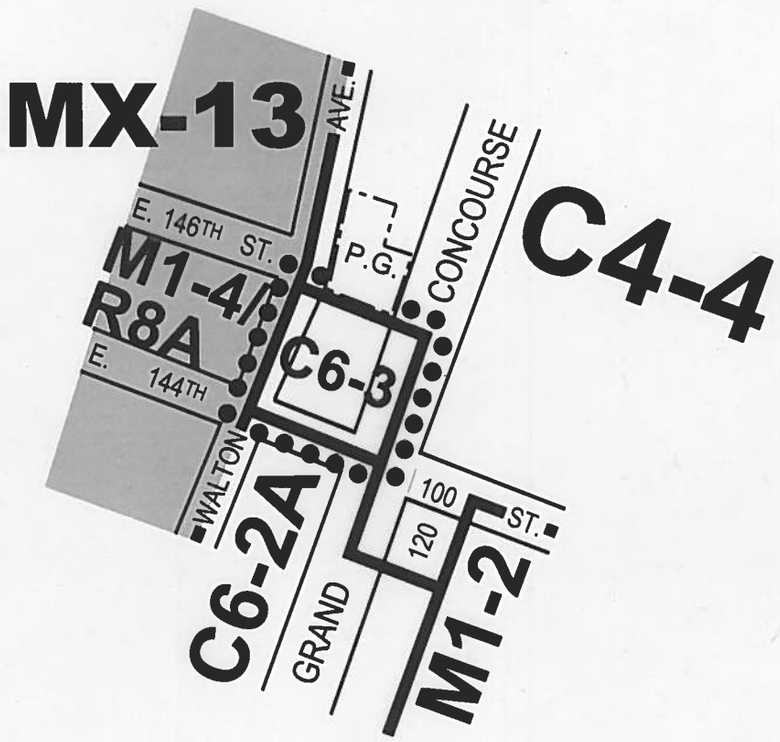
The above resolution (C 180031 ZMX), duly adopted by the City Planning Commission on November 29, 2017 (Calendar No. 8), is filed with the Office of the Speaker, City Council, and the Borough President, in accordance with the requirements of Section 197-d of the New York City Charter.

MARISA LAGO, *Chair*
KENNETH J. KNUCKLES, Esq., Vice Chair
RAYANN BESSER, ALFRED C. CERULLO, III,
MICHELLE R. DE LA UZ, JOSEPH I. DOUEK, CHERYL COHEN EFFRON,
HOPE KNIGHT, ANNA HAYES LEVIN,
ORLANDO MARIN, LARISA ORTIZ, *Commissioners*

RICHARD W. EADDY, *Commissioner, recused*

C.D. 01

C180031 ZMX



CITY PLANNING COMMISSION

CITY OF NEW YORK

DIAGRAM SHOWING PROPOSED

ZONING CHANGE

ON SECTIONAL MAP

6a

BOROUGH OF

BRONX

New York, Certification Date
AUGUST 07, 2017

for S. Lenard, Director
Technical Review Division

SCALE IN FEET

300 0 300

NOTE:

Indicates Zoning District Boundary.

The area enclosed by the dotted line is proposed to be rezoned by changing an existing C4-4 District to a C6-3 District.

MX-13 Indicates a Special Mixed Use District (**MX-13**).

NOTE: THIS DIAGRAM IS FOR ILLUSTRATIVE PURPOSES ONLY.

NYCPLANNING
DEPARTMENT OF CITY PLANNING CITY OF NEW YORK

Community/Borough Board Recommendation

Pursuant to the Uniform Land Use Review Procedure

Application #: **C 180031 ZMX**	Project Name: **425 Grand Concourse**
CEQR Number: 17HPD068X	Borough(s): Bronx Community District Number(s): 1

Please use the above application number on all correspondence concerning this application

SUBMISSION INSTRUCTIONS

1. Complete this form and return to the Department of City Planning by one of the following options:
   - **EMAIL (recommended):** Send email to **CalendarOffice@planning.nyc.gov** and include the following subject line: (CB or BP) Recommendation + (6-digit application number), e.g., "CB Recommendation #C100000ZSQ"
   - **MAIL:** Calendar Information Office, City Planning Commission, 120 Broadway, 31st Floor, New York, NY 10271
   - **FAX:** to (212) 720-3488 and note "Attention of the Calendar Office"
2. Send one copy of the completed form with any attachments to the applicant's representative at the address listed below, one copy to the Borough President, and one copy to the Borough Board, when applicable.

Docket Description:

IN THE MATTER OF an application submitted by NYC Housing Preservation & Development pursuant to Sections 197-c and 201 of the New York City Charter for the amendment of the Zoning Map, Section No. 6a, changing from a C4-4 District to a C6-3 District property bounded by the southerly boundary line of a playground and its easterly and westerly prolongations, Grand Concourse, East 144th Street, and Walton Avenue, Borough of the Bronx, Community District 1, as shown on a diagram (for illustrative purposes only) dated August 7, 2017.

Applicant(s):	Applicant's Representative:
NYC Housing Preservation & Development 100 Gold Street New York, NY 10038	Winifred Campbell NYC Department of Housing Preservation & Development 100 Gold Street New York, NY 10038

Recommendation submitted by:
Bronx Community Board 1

Date of public hearing: September 28 2017 Location: 3024 THIRD AVENUE, BRONX, N.Y. 10455

Was a quorum present? YES ☒ NO ☐ *A public hearing requires a quorum of 20% of the appointed members of the board, but in no event fewer than seven such members.*

Date of Vote: September 28 2017 Location: 3024 THIRD AVENUE BRONX, N.Y. 10455

RECOMMENDATION

☐ Approve ☒ Approve With Modifications/Conditions

☐ Disapprove ☐ Disapprove With Modifications/Conditions

Please attach any further explanation of the recommendation on additional sheets, as necessary.

Voting

In Favor: 15 # Against: 9 # Abstaining: 0 Total members appointed to the board: 44

Name of CB/BB officer completing this form	Title	Date
Cedric L. Loftin	DISTRICT MANAGER	9/28/17

BRONX COMMUNITY BOARD #1

3024 THIRD AVENUE
BRONX, NEW YORK 10455
(718) 585-7117 • Fax (718) 292-0558 • E-mail: brxcb1@optonline.net

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RUBEN DIAZ, JR.
BOROUGH PRESIDENT

GEORGE L. RODRIQUEZ
CHAIRPERSON

CEDRIC L. LOFTIN
DISTRICT MANAGER

September 29, 2017

Conditions/Modifications as to the 425 Grand Concourse Development

- Retain a new Development Property Manager for the planned project at 425 Grand Concourse.
- To enhance security as the development by having a Concierge service at the entrance door.
- Work with HPD and NYCDOT to expand parking opportunities at the project frontage along the Grand Concourse and on East 144th Street between Grand Concourse and Willow Avenue.
- With respect to apartment design for 425 Grand Concourse adhere to or exceed HPD Design Guidelines for the project, and size afforded to all apartments.
- In association with future EIS of HPD projects advance discussions with the School Construction Authority to insure school seat capacity is met with projects in the district to reduce school seat deficits in Bronx Community Board One.

George Rodriguez
Chairman of the Board
Bronx Community Board 1

Cedric L. Loftin
District Manager
Bronx Community Board 1